

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 684, As Amended in the Senate

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO COUNTY SHERIFFS; AMENDING CHAPTER 6, TITLE 20, IDAHO CODE, BY THE
ADDITION OF A NEW SECTION 20-629, IDAHO CODE, TO AUTHORIZE A SHERIFF'S
OFFICE TO SEEK REIMBURSEMENT FOR COSTS OF RECAPTURE; AND DECLARING AN
EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 6, Title 20, Idaho Code, be, and the same is
hereby amended by the addition thereto of a NEW SECTION, to be known and des-
ignated as Section 20-629, Idaho Code, and to read as follows:

20-629. COSTS FOR RECAPTURE. Whenever any Idaho county sheriff's of-
fice is required to expend money from its budget in order to travel to another
state to collect a prisoner, probationer, or parolee who has absconded from
the supervision of the Idaho department of correction, the sheriff, upon
completion of the collection of the prisoner, probationer, or parolee and
the placement of such person in the county jail, may seek reimbursement for
the cost of returning the person to Idaho from the agency from which the
person absconded as indicated in court records. Such reimbursement shall
be sought by submitting an invoice detailing the cost of such recapture,
including any mileage or travel costs, costs for personnel, overtime costs
associated with coverage for traveling personnel, or any other reasonable
costs associated with returning the absconding person to custody in Idaho.
The Idaho department of correction shall budget moneys annually for expenses
as provided in this section and shall, upon receiving the invoice from a
county sheriff's office, ensure reimbursement occurs within thirty (30)
days of receiving such invoice.

SECTION 2. An emergency existing therefor, which emergency is hereby
declared to exist, this act shall be in full force and effect on and after
July 1, 2026.